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FISHING RIGHTS, ECOLOGY AND CONSERVATION ALONG SOUTHERN LAKE MALAWI, 1920–1964

WISEMAN CHIJERE CHIRWA

THIS PAPER DISCUSSES how issues of socio-economic class, race and politics were densely interwoven with the competition for fishing rights, access to land, and fears of ecological degradation along southern Lake Nyasa (now Lake Malawi) from the early 1920s to 1964. It seeks to demonstrate that it was groups of people with access to sources of political and economic power who competed for the lake's environmental resources. Colonial administrators feared that the intensification of this competition would result in over-fishing and ecological degradation along the lake front. The main contenders were traditional leaders, European and Asian (Indian) commercial fishermen and fish traders, a rising group of African 'small-scale' commercial fishermen and fish traders, and nationalist politicians.

The socio-economic characteristics of these groups is worth noting. The traditional leaders, chiefs, village headmen and family heads, were themselves entrepreneurs. They depended on pseudo-traditionalist avenues of accumulation—using family labour and their control over 'junior' members of the households and extended families to appropriate the surplus generated by young men. They were usually the owners of fishing gear and controlled the distribution of the catch to the households.¹ The European and Asian entrepreneurs were a mixture of traders, commercial farmers, and transporters. The capital they invested in fishing and water-based recreational facilities came from these other enterprises. As transporters, owning lorries, they had easy access to fish markets in towns and the plantations of the Shire Highlands. Their lorries were also used to transport passengers and mail between the lake and the urban centres.

The African 'small-scale' fishermen and fish traders were predominantly returning labour migrants and petty traders. They invested the proceeds of migrancy and petty trade in nets and bicycles—thus often referred to as 'bicycle-boys'. Since the source of their economic power was from non-traditional avenues of accumulation, these entrepreneurs tended to break away from the control of the traditional leaders. As a result, they gradually, but effectively, undermined the position and influence of the traditional leaders in the fishing industry. From the early 1950s, they

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1. For details on this see W. C. Chirwa, '“Thebe Is Power”: Rural labour, migrancy and fishing in Malawi, 1890s–1985', Unpub. PhD thesis, Queen's University, Kingston, Ontario, (1992) chs. 1 and 4.

received political support from nationalist politicians in their campaign against the European entrepreneurs.

The nationalist politicians, themselves, had vested interests in commercial fishing. Those who led the campaign against the European entrepreneurs were from the lake districts. The competition for the control of the fishing industry and the alienation of the lake front therefore reflected the class conflicts of the day. These arose from the rapid commercialization of the 'traditional' fishing industry from the early 1920s, which was accompanied by the emergence of new classes of entrepreneurs. Each contending group sought the support of the colonial administration, but without major success. 'So feeble and contradictory were the tactics of the colonial state' that it could not offer sustained support to any of them.²

In much of southern and eastern Africa, the colonial state played an important role in the appropriation of nature to serve either its own interests or those of the most powerful classes in colonial society.³ The colonial conservationist ideology was often influenced by notions of Africa being a nature sanctuary, coupled with the misunderstanding that African methods of harvesting natural products were 'dangerous and destructive'. The strength of 'conservationism' as an ideology and the success of the colonial conservation methods varied from one county to the other.⁴ This article shows that in the case of Nyasaland, the colonial state was rather unsuccessful in its attempts to appropriate nature. As far as fishing and the lake environmental resources were concerned, the state's conservationist strategies were characterized by ambivalences. On the one hand, it wanted to pursue 'conservationism' as an ideology, just as was the case elsewhere in southern Africa; on the other hand, it wanted to protect African interests for fear that the appropriation of resources for settler and elite classes might cause conflict and strife in colonial society. This article also discusses how ecological changes along the lake gave rise to the wider concerns about conserving its environmental resources. As with the concerns about the decline of game and general environmental degradation in the rest of southern and central Africa at this time, the key question was

2. See K. J. McCracken, 'Peasants, Planters and the Colonial State: the case of Malawi, 1905-1940', *Journal of Eastern African Research and Development*, 12 (1982), p. 21; and 'Planters, Peasants and the Colonial State: the impact of the Native Tobacco Board in the Central Province of Malawi', in *Journal of Southern African Studies*, 9, 2 (1983), p. 192.

3. See J. M. MacKenzie, 'The Natural World and the Popular Consciousness in Southern Africa: The European Appropriation of Nature', in P. Kaarsholm (ed.), *Cultural Struggle and Development in Southern Africa* (James Currey, London, 1991), pp. 13-32; W. Beinart, 'Empire, Hunting and Ecological Change in Southern Africa: a review article', *Past and Present*, 128 (1990), pp. 162-186; and the contributions to the special issue → *Journal of Southern African Studies*, 15 (1989).

4. See, W. Beinart, 'Soil Erosion, Conservationism and Ideas about Development: A Southern African exploration', *Journal of Southern African Studies*, 11 (1984), pp. 52-83; → P. Richards, 'Conservation in Africa: a review article', *Journal of Southern African Studies*, 15 (1989).

to identify the class or group of people responsible for these changes—whether they were white settlers or Indian and African entrepreneurs. At the end of the day, as William Beinart has rightly noted, ‘the emergence of conservationist lobbies and legislation by no means signified the triumph of conservationists . . . State action cut across the interests of settlers and Africans. . . . [And] if the unrepresentative nature of colonial states allowed measures to be enacted by concerned officials, the lack of state capacity also made them difficult to enforce’.⁵

In colonial Malawi, the debate on the control of the lake’s environmental resources began in the late 1920s. It centred on three related questions: who had the control over the lake’s fish resources; who had the authority to determine the development of the lake’s fishing industry; and who had the right to allocate plots along the lake front for non-fishing purposes? From an academic point of view, there were three key issues: the Africans’ ‘struggle’ to assert their right of access and control over what was otherwise regarded as ‘common property’, or the right to exploit nature; the ‘class conflicts’ and competition arising from the rapid commercialization of the fishing industry; and the conflict of interests between the fishing communities and those interested in developing water-based recreational facilities.

Transformations, competition and conflicts

To fully appreciate the concerns of the Africans, we need to understand the broader context of the rights to social, economic and political environmental resources essential to their well-being and survival.⁶ There are two key factors here. Firstly, Lake Malawi is a source of open-access resources—the water and the fish in it, and the beaches along its shore. These are ‘common property’ because of the practical difficulties involved in claiming and enforcing exclusive property rights to them and their habitats. Secondly, and related to the above, there are, historically, traditionally, and naturally, no tenurial rights on the lake. The communities along the shore have almost unlimited rights of access to its resources. It is on the basis of these that they define their socio-economic identity, material well-being and survival.

Up to the end of the First World War, fishing was almost entirely in the hands of Africans, and dominated by family heads, village headmen and chiefs such as Mwamadi Matewere at the Bar, Mponda near Fort Johnston, and Chembe near Cape Maclear. From the early 1920s, transformations in the ‘traditional’ fishing industry began to take place at the southern end

5. See Beinart, ‘Empire Hunting and Ecological Change’, pp. 162, 177–178.

6. See A. E. Ferguson, B. Derman and R. M. Mkandawire, ‘The New Development Rhetoric and Lake Malawi’, *Africa*, 63, 1 (1993), pp. 1–18; a → Derman and Ferguson, ‘Human Rights, Environment and Development: the dispossession of fishing communities on Lake Malawi, in *Human Ecology*, 23, 2 (1995), pp. 125–142.

of the lake.⁷ An official report published in 1920 observed that: 'the natives, using grass or reed traps or nets along the shore, or lines from canoes in deeper water, take large quantities of fish from Lake Nyasa', and those along Lake Chilwa 'catch fish and sell it in the Zomba and Blantyre markets'.⁸ Two years later, 'there was a large fishing industry at the south end of the lake' catering for markets in Zomba and Blantyre.⁹ Lack of documentation of fishing makes it difficult to know the exact numbers of people involved in fishing and fish trading at this time. A draft report of a labour survey taken between 1925 and 1926 speculated that 'a considerable proportion' of casual labour in the Shire Highlands 'could be absorbed in the fish trade'.¹⁰ This economic activity was not confined to African entrepreneurs alone. At the same time, 'one or two Europeans' began to fish 'for trade and commerce' in the South Nyasa (Fort Johnston, now Mangochi) district. Competition arose among themselves and between them and their African counterparts. Chiefs and village headmen in the district complained that the European fishermen were 'interfering with their fishing rights and operations'.¹¹ Two interesting cases were between a certain Mr Liegel and Village Headman Mwamadi Matewere at the Bar, and the Yiannakis Brothers and Chief Mponda just a few miles north of Fort Johnston.

In about 1929 or 1930, Liegel erected fish weirs and traps just 50 yards above Matewere's and in so doing came into direct confrontation with the headman.¹² A fight broke out between Liegel's and Matewere's men which was brought to the attention of the District Commissioner. In the process of investigating the incident, the government discovered that there were a number of European and Asian entrepreneurs directly involved in the industry, or financing African fishermen and fish-traders. Matewere himself was supplying fish to Indian traders who provided him with capital to construct more weirs in exchange for exclusive rights to purchase his catch. As conflict between the Africans, European fishermen and Asian traders intensified, the government decided 'to institute enlightened conditions for the future welfare of the [native] community' by controlling non-African commercial fishing.¹³ 'I do not feel very easy about the increase in the number of European professional fishermen', minuted one official; 'it

7. K. J. McCracken, 'Fishing and the Colonial Economy: the case of Malawi, *Journal of African History*, 28 (1987), p. 421; Chirwa, 'Theba is Power', pp. 175–186.

8. Foreign Office, *Nyasaland: A Handbook Prepared Under the Direction of the Historical Section of the Foreign Office* (HMSO, London, 1920), pp. 61–62.

9. S. S. Murray, *A Handbook of Nyasaland* (HMSO, London, 1922), p. 110; McCracken, 'Fishing and the Colonial Economy', p. 420.

10. Malawi National Archives (MNA). S1/428/27. Draft Report of a Labour Survey, 1927.

11. MNA. NS1/10/1. Report by the Committee to Consider the Fisheries Report, 1944.

12. MNA. S1/4371/30. I. B. Moir, District Commissioner, Fort Johnston, to Senior Provincial Commissioner, 1 April 1930; Minutes by the Attorney General, 11 January 1930.

13. MNA. S1/4371/30. Game Warden to Chief Secretary, 26 April 1930.

is highly inadvisable that what is primarily a native trade should pass into European hands . . . with so many Indians and Europeans competing, the native trade . . . is seriously affected', concluded another.¹⁴ Fishing Rules were introduced in 1931 prohibiting European and Indian commercial fishermen from operating within two miles of the African fishing ground at the Bar without a written permit from the Provincial Commissioner.¹⁵ However, the colonial administration had no mechanism in place to enforce its rules, and neither the Europeans nor the Africans recognized them.

What is worth noting here is the administration's preference for the development of African commercial fishing. Three reasons accounted for this. Firstly, this was an industry which had developed in an area which was agriculturally marginal: 'to allow Europeans to engage in commercial fishing would be to undermine the only money-making activity existing near the lake and hence increase the number of tax defaulters'.¹⁶ Secondly, the administration was worried about the escalation of violence between the non-African commercial fishermen and the African communities in the area.¹⁷ Being a 'law and order' regime, and always interested in having control over the process of change, the colonial administration did not wish to see the situation drift into chaos. Official opinion was that fishing and fish trading were 'native' occupations. This was based on the understanding that though commercialized, these activities were still part of the Africans' means of obtaining their subsistence. It was therefore difficult to separate commerce from subsistence. The third reason was that the prominent non-African commercial fishermen were Greeks, 'non-Anglo-Saxon, non-Protestant and not even English-speaking'.¹⁸ Their political and economic value to the colonial state and the empire in general was minimal and officials had very little sympathy for them. However, the major challenge to the government remained the same: how to strike a balance between conservationist concerns and African interests. The result was that the focus of proposed policies shifted from time to time.

Despite government hostility some Greek fishermen were able to do well by making alliances with African middlemen. A good example is the Yiannakis Brothers who built a large business by selling part of the catch at the lake to 'bicycle boys', a major force in commercial fishing, and

14. MNA. S1/4371/30. Senior Provincial Commissioner to Chief Secretary, 3 December 1932; District Commissioner, Fort Johnston, to Senior Provincial Commissioner, 14 November 1932.

15. MNA. S1/4371/30. District Commissioner, Fort Johnston, to Provincial Commissioner, 16 March 1931; McCracken, 'Fishing and the Colonial Economy', p. 421. The Bar is where the Shire River flows out of the lake.

16. McCracken, 'Fishing and the Colonial Economy', p. 421; MNA. S1/4371/30. Minutes of a Baraza Meeting, Fort Johnston, 17 February 1933; District Commissioner to Provincial Commissioner, Southern Province, 17 February 1933.

17. MNA. NS1/10/1. Report by the Committee to Consider the Fishing Report, 1944.

18. McCracken, 'Fishing and the Colonial Economy', p. 423.

transporting the remainder by lorry to the urban markets of Zomba, Limbe and Blantyre, the tea plantations in the Cholo (Thyolo) and Mlanje districts, and the tobacco-producing areas of the Central Province. The Yiannakis came from the island of Limnos. They had initially obtained land in the Namwera area, east of Fort Johnston, to grow tobacco. In 1933, Nicholas Yiannakis obtained a government permit to fish in the Shire River near Fort Johnston 'in a very humble way . . . with the use of basket fish traps'.¹⁹ He then bought a locally made seine net (made by local Africans) and brought his two brothers, Christos Comminos and Stavros, into the business. They obtained two more permits to fish at Chipoka and Mtimbuka, a few miles north of Fort Johnston, where they had also leased residential plots. In 1938 they imported seine nets from England and became the first people to trawl on Lake Nyasa. By the early 1940s, the Yiannakis were Nyasaland's major fish exporters to Southern Rhodesia.²⁰ In the 1950s, they were travelling to Amsterdam, Edinburgh and London to purchase nets and boats.

Their success attracted several other non-African commercial fishermen into the Fort Johnston district. By 1938, not less than five permits had been issued to non-African commercial fishermen, predominantly Greeks, and a few Indians.²¹ During the 1940s and 1950s, the government received several applications for fishing and fish-trading permits from South Africa, Southern Rhodesia and Tanganyika, but the administration was very opposed to the development of large-scale fishing firms. This was partly for fear that African fishermen and fish traders would be eliminated by well-capitalized European and Indian commercial fishermen, and partly also for fear of an ecological disaster. All the applications from large firms from within and outside the country were thus turned down. Only one major fishing firm belonging to a certain Colonel Sanders was granted a fishing permit in the 1940s.²² Sanders was an agent of General Motors (US), Ford Motors, and later, Stansfield Motors, and owner of an international transport company. He had raised £30,000 from his British sources and proposed to set up a private fishing company to be incorporated in Nyasaland with a monopoly in deep water fishing. The company would also manufacture fish-meal and manure using facilities supplied by Standard Cannery of South Africa. Because of the ecological implications of deep water fishing Colonel Sanders' proposal was initially

19. MNA. NS1/10/1. Report by the Committee to Consider the Fisheries Report, 1944. See also McCracken, 'Fishing and the Colonial Economy', pp. 421–422.

20. See MNA. COM-9/3/1. Chris Yiannakis' Fishing Account, 1956.

21. MNA. NS1/10/1. Report by the Committee to Consider the Fisheries Report, 1944. The list included: Nicholas and Chris Yiannakis, H. M. Rodrigues, Abdullah Mussah, Nicholas Trataris, Ibrahim Osman, W. P. Taylor, Jussab Suleman, S. Drop, a certain Read, Henry Aschcroft, a certain Karim, De Niello, O. Wilt and A. Rajab.

22. See MNA. S1/43/II/30. Extracts from the Executive Council Meeting, 1 August 1946.

rejected. The permit was given after he had reduced his plan from deep water trawling to 'small-scale' seine-net fishing, limited to a smaller area around Domira Bay in present Salima district in the central sections of the lake. The colonial administration's aim in doing all this was to balance African interests with a small European sector.

Colonel Sanders' case clearly demonstrates the extent to which the administration disliked the development of large-sale commercial firms in the country's fishing industry. This, however, had implications for the industry's process of mechanization. Elsewhere in southern and central Africa, Northern Rhodesia being a good example, the mechanization of the 'traditional' fishing industry proceeded fairly rapidly. Imported and improved fishing gear and crafts were adopted in response to the expanding fish markets from as early as the 1920s. By the early 1930s, there was increased use of ice and motorized transport as traders began to handle larger quantities of fresh fish to satisfy the increasing demand.²³ This was not the case in Nyasaland prior to the late 1940s and early 1950s. Ice was used only from the second half of the 1950s which, in a way, increased the competition between African fish traders and the European counterparts.

Competition, differentiation and politics

Though competition between these two groups was intense, the Europeans did not aim at wiping out the Africans. The non-African fishermen, traders, and transporters benefited from their African rivals. It was to the African fish-traders that the non-African commercial fishermen sold most of their fish at the lake and at various lorry stops on the road from Fort Johnston to Zomba, Limbe, and Blantyre. *Anyamata a geni*, 'gain boys',²⁴ took the fish from these depots to remote village and plantation markets. The African fish-traders constituted the majority of the lorry passengers on the route from the lake to the towns and the plantations in the Shire Highlands and the Central Province. This, however, does not mean that competition and hostilities did not exist. There was 'considerable friction' among the non-African commercial fishermen themselves, for example, between the Yiannakis Brothers and Van der Berg, one of the pioneer settlers in the district; between the former and Chief Mponda and

23. See M. C. Musambachime, 'The Role of Kasenga (Eastern Shaba) in the Development of Mweru-Luapula Fishery' *African Studies Review*, 38, 1 (1995), pp. 54–63; and by the same author, 'Development of the Fishing Industry in Mweru-Luapula, 1920–1964', *Sango*, 2, 1 (1983), pp. 19–26.

24. This term is made by combining *myamata* (singular), boy or youth, or *anyamata* (plural) with 'gain' to mean 'middleman' or retail trader. See also E. C. Mandala, *Work and Control in a Peasant Economy: a history of the Lower Shire Valley in Malawi, 1859–1960* (University of Wisconsin Press, Madison, 1990), pp. 253–254, 379.

his people;²⁵ and between the chiefs and village headmen and the African fish-traders. The chiefs and village headmen were themselves fishing 'for gain', using the same methods as non-Africans, but their operations being much less sustained.²⁶ They were therefore interested in seeing a reduction in the influence of non-African commercial fishermen for fear of competition. They garnered support from local politicians and Native Welfare Associations (in which they had considerable influence) in the protest against non-African commercial fishermen and fish-traders. For example, in 1932 the Blantyre Native Welfare Association requested the government to 'preserve the [fishing] industry for the natives only'. The Association made its 'strong request' [*sic*]:

on the understanding that, in Nyasaland, the only trade a native has managed to raise money for his needs is the fish trade. This trade is the only one which even the low class of the natives manage to carry on and be able to raise money for hut taxes and their living necessities and it is a pity to see the non-natives competing unnecessarily and compel the natives to remain without any means of finding his living.²⁷

The Association further noted that the Africans were facing unfair competition because they did not have transport facilities of their own, 'spending days and weeks' at the lake to obtain their supply while lorry owners could make two or three trips in a week.

Motorized transportation was a major concern to the majority of the African fish-traders. Though they benefited from its operation between the lake and the markets, they feared that the non-African traders, especially Indian merchants, would use it to undercut their operations. They wanted the government to control the activities of non-African fish-traders, as this letter from Denson Chitenje shows:

Dear Bwana, I am wondering my Master, when work is not founding in this country . . . our work was of carrying fish and selling them. Then we were getting money and paying for our taxes, and some was used for our food and clothes . . . in that way we are getting life, we all natives . . . nowadays . . . you have allowed the white men of your tribe carrying fish instead of we. We have tired with them now because we shall fight each other there, therefore you must keep chains for us which we will be chained with if you don't arrange this matter for us.²⁸

25. MNA. S1/437I/30. J. Abraham, Senior Provincial Commissioner, to Chief Secretary, 29 May 1937.

26. MNA. NS1/10/1. Cecil Baker, 'Notes for the Consideration and Guidance on the Issue of Fishing Permits', 16 October 1942.

27. MNA. S1/437I/30. Resolution of the Blantyre Native Welfare Association, 3 December 1932. See also minutes by the Governor, Harold B. Kittermaster, 22 March 1937.

28. MNA. S1/437I/30. Denson Chitenje to Bwana [District Commissioner, Provincial Commissioner, or Chief Secretary?], 7 November 1932.

Chitenje placed part of the the blame on African commercial fishermen and local authorities like Matewere for favouring Indian traders and well-capitalized African 'middlemen' who were using motorized transportation. His attack on Matewere as 'the one who caused problems' demonstrates the divisions, conflicts and competition within the African community itself. Traditional leaders with a vested interest in commercial fishing were becoming increasingly unpopular with a rising group of African entrepreneurs at this time. The competition and conflict between these two African groups was just as intense as that between the Africans and the Europeans and Indians. The major weapon in the hands of the traditional leaders was their political position in the society. With this, and support from the Native Welfare Associations—where they had representation—they managed to temporarily reduce the growing influence of the rising group of African entrepreneurs, at least up to the early 1930s.

The political influence of the traditional leaders worried some colonial administrators as well. They shared Chitenje's sentiments and feared that ill-feeling, bribery, and corruption in fish-buying and selling at the lake would result in increasing incidents of violence. The 'monopoly' which Matewere was enjoying was 'bound to give him a somewhat exalted idea of his own importance in his dealings with other natives as well as with Europeans and Asiatics',²⁹ which would result in overt strife. However, the government '[could] not reasonably interfere in the actual trading of the fish'. An attempt to patrol major fishing grounds around Fort Johnston ended in disappointment as the African police were inadequate for the purpose. Often the task was left to local chiefs, who themselves had vested interests in commercial fishing and were party to the conflicts taking place in the area.

From the mid-1930s, the position of the chiefs and village headmen became increasingly threatened by the growing influence of new groups of African entrepreneurs. The growth of African cash-cropping from the 1920s and the expanded labour demand of the tea plantations from the early 1930s—which was accompanied by a gradual rise in wages, at least after the Great Depression—increased the purchasing power of the Africans and thus expanded the commercial markets for fish. There was 'a large demand' for fish on the tea plantations of Cholo and Mlanje, especially during the tea-picking period from January to March when extra labour was employed.³⁰ Market places were opened on almost every plantation where fish and other food items were sold. These changes took place in an environment of increasing labour migration to South Africa and

29. MNA. S1/4371/30. District Commissioner, Fort Johnston, to Chief Secretary, 14 February 1930.

30. MNA. PAM/823, and COM-9/4/1. *Report of the Inquiry into the Fishing Industry* (Government Printer, Zomba, 1956), p. 5.

Southern Rhodesia, especially from the mid-1930s. This in turn increased the circulation of money in the rural economies. Returned migrants increasingly took to fish trading as an economic activity, investing their savings in bicycles to carry fish to the markets in towns and to the expanding tea plantations of the Shire Highlands districts.

The result was that at the southern end of Lake Malawi and around Lake Malombe the African fishing industry became 'a big one' and 'well-established'. The annual report of the South Nyasa district for 1930 noted that 'there are approximately 200 villages settled on or near the shore of lake Nyasa and Malombe, and the majority of people in these villages engage themselves in fishing for "Gain"',³¹ A report of the population census taken in the following year estimated those engaged in the fish trade in the country at not less than 10,000.³² The majority of these were in South Nyasa district and around Lakes Malombe and Chilwa where there was a 'considerable industry in the smoking and drying of fish for sale. . . . Thousands of fish [were] transported to Zomba, Blantyre and Limbe and sold fresh while many thousands more [were] cured by smoking and sold in village and native markets'.³³ Traders from the Shire Highlands and 'all parts of the country to the west and south' came down to Fort Johnston by car and on bicycles to buy fish. 'The fish carrier's bicycle [was] familiar to both sight and smell on every road'.³⁴ Some entrepreneurs settled permanently in the district to engage in fish processing and trading. At a small inland market in the Southern Province fish sales increased from 15 tons in 1934 to 32 tons in 1936.³⁵ 'A large number of natives' from Dowa and other districts in the Central Province found the buying and selling of fish 'an easy way of obtaining money'. The fish was purchased at the lake at two fish for a penny and sold in Dowa and Lilongwe townships at three pence a fish.³⁶

The expansion in the fish trade resulted in a transformation in the organization of the fishing industry as a whole. New groups of entrepreneurs emerged and this in turn resulted in socio-economic differentiation. The annual report of the South Nyasa (Fort Johnston) district for 1938 recorded: 1,001 'professional' fishermen, 898 fish-traders,

31. MNA. NSF4/1/7. South Nyasa District Annual Report, 1930.

32. Nyasaland Protectorate, *Report of the Population Census* (Government Printer, Zomba, 1931), p. 28; Colonial Office, *An Economic Survey of the Colonial Empire* (HMSO, London, 1932), p. 48.

33. MNA. NSF4/1/4. South Nyasa District Annual Report, 1933; Nyasaland Protectorate, *Report of the Population Census*, 1931, pp. 27–28. See also MNA. NSF4/1/5. South Nyasa District Annual Report, 1939 and NSF4/1/7. South Nyasa District Annual Report, 1945.

34. MNA. NS3/1/8. Provincial Commissioner, Southern Province Annual Report, 1939; K. J. McCracken, 'Fishing and the Colonial Economy', p. 422.

35. MNA. PAM/702. Native Welfare Committee, *Nutrition Review of the Natives of Nyasaland* (Government Printer, Zomba, 1936), p. 7.

36. MNA. S1/4371/30. Extract from the Dowa District Annual Report, 1937.

and 396 'professional' makers of canoes, nets, ropes, string and floats. Along with these were 516 shore-seine nets, 112 float gill-nets, 51 scoop nets, and 1,943 baskets and traps.³⁷ The profits these entrepreneurs derived from fishing and fish trading varied from season to season depending on such factors as capital outlay, type of fishing gear used, access to transport and proximity to markets. For example, at Nkhota-kota (central part of the lake), those with 'big nets' made between £20 to £30 a year, but the average fishermen 'probably [did] not exceed £10' while hawkers 'possibly' made between £1:10s:0d and £2 a year.³⁸

These figures were probably higher for those in the South Nyasa district because of proximity to the main fish markets in the Shire Highlands and access to lorry transportation. The result was that some fishermen and fish traders, and especially the returning labour migrants and traders who invested in fishing gear and bicycles, were becoming increasingly prosperous. They were the ones who effectively undermined the position of the chiefs and village headmen in the fishing industry. With the opening up of the country to labour recruiting by South African agents from 1936, the returning labour migrants were financially well placed to take advantage of the expansion in commercial fishing and fish trading. Both the traditional leaders and colonial administrators could not totally control their growing influence by this time.

The conservation debate

From the late 1930s there were major shifts in the colonial administration's interest in the development of the fishing industry. Two factors accounted for this. First, the administration was concerned with the generally poor nutrition of workers on the Shire Highlands plantations. This concern was influenced by the pressure put on the Colonial Office by the International Labour Office (ILO). During the inter-war period, the ILO passed several conventions on the housing, feeding, and general welfare of plantation workers. Britain was a signatory to these conventions and wanted to see them implemented in its colonies with modifications to meet the prevailing local conditions.³⁹ In Nyasaland, the solution to the poor nutritional requirements of plantation workers lay in the development of the fishing industry. It was felt necessary to investigate the long-term sustainability of the country's fisheries resources in order 'to

37. MNA. NSF4/1/5. South Nyasa (Fort Johnston) District Annual Report, 1938. The 1933 Annual Report recorded 2,480 'professional' fishermen and 674 fish processors. MNA. NSF4/1/4. South Nyasa District Annual Report, 1933. See also McCracken, 'Fishing and the Colonial Economy', p. 423.

38. Nyasaland Protectorate (*Report of the Population Census*), 1931, p. 28.

39. MNA. S1/1132/30. Secretary of State for the Colonies to Governor, Nyasaland, 6 August 1930.

conserve them so that regular supplies may be available for consumption'.⁴⁰ Unfortunately, the outbreak of the Second World War in 1939 disrupted the research started by the fisheries and nutritional surveys of 1936 and 1938 respectively. It was not until after the war that the government began to address the issue once more.

The 1930s was also a period of increasing official concern with the lake's ecology. This was heightened by land alienation along the lake front for recreational purposes. The idea of fish conservation was first proposed in 1926 but it was felt that 'no interference, official or otherwise, could be of any benefit to the native who makes his own string, [and] nets . . . [and] puts [them] out when the lake allows him to do so'.⁴¹ By 1930, this view had changed because,

further enquiries have only served to strengthen the opinion that any scheme for increasing the catch would be attended by risks of fishing out the lake since the methods at present employed by natives although of a primitive character, are sufficiently successful to place a considerable strain on the supply of fish. . . . As regards the desirability of exercising some control over the industry either by declaring closed seasons or preventing the extraction of immature fish, the Provincial Commissioners are unanimous in reporting that such measures would be certain to arouse much resentment among natives.⁴²

Ecological concerns came to a peak between 1930 and 1935. The lake level had receded and the Shire River at the Bar and parts of Lake Malombe were 'almost entirely blocked with *sudd*',⁴³ a thick impenetrable water vegetation. Fishermen constructed weirs and traps across the river and in shallow waters along the lake. As far as Monkey Bay, about 40 miles north of Fort Johnston, 'fishing was good and large catches with spoons and seine nets could be made at almost any time of the day'.⁴⁴ The colonial administration thus abandoned its policy of non-interference in traditional fishing methods. It was 'necessary' to protect the country's fish resources because, in the opinion of government officials, native nets were designed in such a way that small or immature fish could not escape. The weirs and traps were 'a disastrous practice'. Fishermen

40. MNA. PAM/702. Nutritional Review of the Natives: A review of the further studies and researches on the subject which appears desirable.

41. MNA. S1/1470/25. Provincial Commissioner, Northern Province, to Chief Secretary, 23 January 1926.

42. MNA. S1/4371/30. R. Rankie to Lt. Col. L. M. Amery, Secretary of State for the Colonies, 10 February 1926.

43. MNA. NS1/10/1. Interim Report on the Fish and Fisheries of Lake Nyasa: 'Lake Levels, 1933-1943'. The minimum and maximum heights were: 17 feet 9 inches and 20 feet 6 inches in 1933; 19 feet 7 inches and 21 feet and 6 inches in 1934; 20 feet and 9 inches and 23 feet and 3 inches in 1935. Thereafter they began to rise: 22 feet 11 inches and 25 feet and 4 inches in 1936, 23 feet and 8 inches and 26 feet and 7 inches in 1937, and 22 feet 10 inches and 26 feet in 1936. For comparison see McCracken, 'Fishing and the Colonial Economy', p. 417.

44. MNA. NS1/10/1. Interim Report on the Fish and Fisheries of Lake Nyasa.

using these methods were 'catching every fish attempting to enter the river(s) . . . and must literally be destroying hundreds of thousands'.⁴⁵

In the absence of scientific data, there was no actual evidence of the decline in fish stocks in the lake. The strongest reason for intervention was the distaste of colonial officials for the methods used by Africans to harvest fish. In their opinion, the Africans were 'ignorant' of the effects of their 'rapacious' fishing practices: 'when *chambo* (tilapia) are caught in native nets the young concealed in the pharynx of the tilapia fish are not returned to the water . . . the fish is held by the tail and shaken, and a shower of the young issue from the mouth to be greedily collected and eventually eaten'. This practice is 'destructive and dangerous' because

the mortality of fish-fry alone from natural enemies is incalculable and if the very breeding-fish themselves are remorselessly killed off year after year in ever increasing quantities, then all the natural history experience gained throughout the world would prove that ultimate disaster will be inevitable, and such a disaster generally arrives much sooner and more completely than expected (cf . . . certain fish industries such as cod and sardines, whales, seals, passenger-pigeons, etc).⁴⁶

This mode of thinking was characteristic of the colonial conservationist ideology in the whole of the southern Africa region. African methods of harvesting nature were indignantly viewed as destructive, primitive, unprofessional and unsporting. Colonial conservationists argued that African hunting methods and trapping of animals caused 'a lot' of suffering to animals before they died, shooting their prey at close range or stabbing with spears and wands.⁴⁷ Pseudo-scientific evidence was often used to justify the colonial ideology of 'conservationism' in matters relating to soil, game, and forest protection. By this time, the administration in Nyasaland already had regulations relating to game and forest control though it was after the Second World War that soil conservation measures were enforced.⁴⁸ Most of these regulations were justified by reference to dubious 'scientific' interests which masked colonial conservationists' indignation at African methods of using environmental resources.

The first fishing regulations were introduced in 1930 by adding a section (Section 3: Fishing Rules MP.437 of 1930) to the Game Ordinance. They prohibited fishing by traps, weirs and poisoning, except in areas to be

45. MNA. S1/4371/30. R. C. Wood, Game Warden, to Chief Secretary, 26 April 1930; see also Governor to Chief Secretary, 6 May 1930 in the same file.

46. MNA. S1/4371/30. Wood to Chief Secretary, 26 April 1930.

47. This account comes from S. Brooks, 'Save the Game: Conservationist Discourse in Early 20th century Natal', unpublished paper, Economic History Conference, University of Durban, Pietermaritzburg (1992); and by the same author, 'Playing the Game: The Struggle for Wildlife Protection in Zululand, 1910-1930', unpub. MA thesis, Queen's University, Kingston, Ontario (1992).

48. See R. W. Kettlewell, *Agricultural Change in Nyasaland, 1945-1960* (Food Research Institute, Stanford, 1965); and by the same author, 'Nyasaland: where and whence?', *African Affairs*, 63 (1963), pp.258-265.

demarcated by the District Commissioner, or any other administrative officer. A year later, there came a sweeping prohibition of poisoning and fishing within two miles of river mouths to protect the fish entering the rivers to spawn.⁴⁹ The rules did not take into account some positive elements and some weaknesses in traditional fishing methods. For example, weirs and traps could only be used in shallow waters, and especially during the dry season. In the rainy season when the rivers, marches and lagoons flooded, the traps were removed for fear that they might be washed away. They were also constructed in such a way that fish-fry could easily pass through. Fish poison could only be used in still or slow moving waters and its effectiveness was limited to a short period of time. The amount, depth, and flow of water could easily reduce its strength. As for the traditional nets, they were designed to catch specific fish species in their habitats. Pelagic species were caught by different types of nets from deep-water species such as catfish. It was the adoption of new, and especially imported fishing technology such as nylon gill-nets, trawling nets, and narrow-meshed beach seine nets, which put fish stocks at risk. They were more efficient, required less labour, were easier to operate, and also more durable than the traditional nets. The adoption of this technology, which put pressure on fish stocks, was a response to the expansion in fish markets described above; the leading figures were returning labour migrants and African traders—the emerging ‘new’ class of entrepreneurs in the fishing industry.

With the introduction of Indirect Rule and the establishment of Native Authority treasuries in 1933, chiefs in the lakeshore districts were empowered to collect fees on canoes made in their areas. The Forest Ordinance (Forest Rules GN.12/32) forbade the cutting of trees for canoes without payment of a royalty to the chief in whose area the tree was cut.⁵⁰ Quotas were imposed on trees to be cut for canoes.⁵¹ Resistance to these regulations was widespread and the government found it extremely difficult to implement them. Fishermen in Fort Johnston district complained that the restrictions ‘seriously handicapped those natives engaged in the fishing industry’ and very little interest was taken in observing them.⁵² In Nkhota-kota, chiefs requested the government to abolish the quotas.⁵³ Further north, in Nkhata Bay, some fishermen evaded the restrictions by crossing political borders into southern Tanganyika to cut trees or buy

49. MNA. NS1/10/1 and S27/1/10/25. Fishing Rules Government Notice no. 13/1931.

50. MNA. NSF 4/1/7. South Nyasa District Annual Report, 1933. In November 1932, 1,814 canoes were recorded in the district, and 6,837 canoe trees were available. Canoes were being ‘replaced’ or made at the rate of about 800 a year.

51. MNA. NNC 3/1/4. West Nyasa District Annual Report, 1934; NSF 4/1/7. South Nyasa District Annual Report, 1933.

52. MNA. NSF 4/1/7. South Nyasa District Annual Report, 1933.

53. MNA. COM-9/3/1. Mwenyebabu, Tapa-tapa Village, Nkhota-kota, to Commission of Enquiry, Lilongwe, 21–22 August 1956.

ready made canoes.⁵⁴ Difficulties in enforcing the forestry regulations were also numerous: poor communications, shortage of personnel, physical dangers in patrolling the forests, and unreliability of African forest rangers who were often bribed or threatened by 'illegal' canoe-makers.⁵⁵

Land, recreation, and the fishing industry

In general, state intervention in African commercial fishing was a failure. Throughout the 1930s and 1940s, forest and fishing regulations were never effectively implemented. During the Second World War there was a shift in government attention from fishing regulations to land disputes along the lake front. Some 51,229 acres had been leased along the lake front between Fort Johnston and Domira Bay in present Salima district for fishing and camping grounds, hotels, and residential buildings.⁵⁶ The leases often interfered with local people's gardens and fishing sites. Some local chiefs blocked applications for leases,⁵⁷ and government officials sided with them,

when Native Authority Mponda, on behalf of the people of his area whose rights are threatened by interference by non-natives, refuses to grant facilities, he is not necessarily being unreasonably and maliciously obstructive. The local natives have enjoyed their fishing rights all their lives, they are jealous of these rights and although . . . they are very tolerant and long suffering, and not always vociferous when their rights are infringed, they do experience resentment. This resentment may not at first appear manifest, yet repetition of the cause for offence might have dangerous reactions on the part of the people.⁵⁸

What ensued from this was a legal debate on custodianship. The government's position was that, 'while the foreshore of the lake may be to some extent subject to private ownership, such cannot be said of the water abutting on it unless a claim in this respect is supported by a ruling in the courts'.⁵⁹ The lake front could be leased because it was part of Crown Land as defined by the 1891-93 land settlement scheme, but only with consent from traditional owners. The water abutting on it was under direct government control and thus could not be subject to private ownership. However, chiefs and family heads had the power to turn down applications which interfered with villages, gardens, and traditional fishing grounds. The colonial administration thus acknowledged the

54. MNA. NNC 3/1/5. West Nyasa District Annual Report, 1935.

55. MNA. S11/3/1/89. West Nyasa District Annual Report, 1943.

56. MNA. S37/1/10.25. Senior Provincial Commissioner to Chief Secretary, 14 October 1935; S37/1/10/26. Report of the Lakeshore Development Committee, 1945.

57. MNA. S37/1/10/25. Cecil Baker, District Commissioner, Fort Johnston, to Senior Provincial Commissioner, Southern Province, 13 February 1942.

58. MNA. NS1/10/1. Baker, 'Notes for the Consideration and Guidance in the Issue of Fishing Permits', 16 October 1942.

59. MNA. S37/1/10/25. K. L. Hall, Chief Secretary, to Senior Provincial Commissioner, 14 October 1943.

Africans' natural, historical and traditional rights to exploit the lake's environment.

The shift to land disputes along the lake front also reflected a major shift in the colonial conservation mode of thinking in Nyasaland at this time. Up to then the lake and its fish were treated as entities that existed in isolation from the people who exploited them and the land that constituted a part of the lake's ecology. From this time, the lake, the fish in it, the people who caught the fish, and the land abutting on the lake were treated as one ecological system—a whole, and uncompartimentalized unit. As already noted, this was also a time that Nyasaland embarked on an ambitious natural resources conservation programme. Natural resources boards were formed to deal with the conservation and preservation of soil, wildlife, water and forestry resources. However, the status of the lake's environmental resources in the colonial economy was unclear. There was no legal document defining the custodianship of these resources beyond the simple reasoning that they were part of crown Land property. As a result, the colonial administration had very little control over them.

Realizing this weakness, the government appointed a committee in July 1943, 'to examine and make recommendations for the development . . . of the whole lakeshore' and to proceed as a Town Planning Committee.⁶⁰ The Committee worked for almost one year and came up with four major recommendations.⁶¹ Firstly, leases varying in duration from 7 to 33 years were granted, having regard to the capital invested in the land. In respect of the leases for hotels and residential plots with improvements estimated at £300 or more, a 33 year lease was granted; a 21 year lease for those with an estimated value of £200; and a 7 year lease for those with an estimated value of £100 or less. Secondly, in the case of leases by non-African commercial fishermen for the purposes of securing fishing grounds, yearly leases were granted with the option to renew. Fishing permits were issued to the lease-holders. Thirdly, a Fisheries Department was established to deal with the fishing industry on three main lines: policing and inspection of fishing depots to ensure that the conditions of fishing permits and leases were observed; to carry out scientific research; and 'to organize' the fishing industry in general, and African commercial fishing in particular. Finally, the committee recommended the setting up of a Standing Committee to function as a Town Planning Committee, in conjunction with the Fisheries Department, for the general development of the lakeshore including fishing and recreation. In doing all this, the colonial administration hoped to

60. MNA. S37/1/10/24. Interim Report of the Committee on the Development of the Lakeshore of Lake Nyasa, 1945, Acting Chief Secretary, 'Government General Notice', 25 January 1945.

61. MNA. S1/37/1/10/24. Interim Report of the Lakeshore Development Committee, 1944, Acting Chief Secretary, 'Government General Notice', 25 January 1945.

assume some control over the lake's environmental resources which would in turn give it power to intervene in their exploitation and appropriation. The result would be the annulment of the Africans' historical and natural rights to these resources. It was believed that once the state had appropriated them, it would allocate them according to its own interest and those of the powerful or dominant classes in the colonial society.

The Africans' response to the above recommendations varied from place to place. In Salima, Chief Maganga gave general approval to the leasing of plots along the lake, but with the sole reservation that his people's fishing rights would be safeguarded and all areas already occupied by villages and gardens would be left undisturbed.⁶² As a result, almost the whole of the lake front in his area was leased for hotels and camping sites, but fishing grounds were 'left undisturbed'.⁶³ Maganga seems to have been influenced by the terms of the 'non-disturbance' clause in the 'Certificates of Claim' issued to the settler landowners in the early 1890s. The clause stipulated that 'no native village or plantation existing at the time of this certificate on the estate shall be disturbed or removed without the consent in writing of Her Majesty's Commissioner and Consul-General'.⁶⁴ Though inadequate, this statement defined the status of the Africans found on alienated land in the Shire Highlands during the early decades of colonial penetration. Given that Maganga's area was far from the Shire Highlands, the centre of the colonial economy, it would be wrong to draw strong conclusions about his knowledge of the terms of the 'non-disturbance' clause and the 'Certificates of Claim'.

The real reasons for Maganga's approval for the leases are therefore unclear. Some guesses can however be made. To begin with, other than the areas around Domira, Senga Bay, and present Mdulamanja, much of the littoral plain in his district was not densely populated owing to poor soils. Rich soils existed a few miles off the lake. Since the leases were for a narrow strip of land along the lake front, there was no major interference with villages and gardens. In addition, since the leases were for hotels, camping sites, and residential buildings, there was no immediate threat to the local fishing industry for as long as access to the lake was guaranteed. Maganga might also have had some personal interest in the land deals in his area. In addition to benefiting financially from these, the presence of

62. MNA. S37/1/10/26. Borley to Alcock, 2 February 1945.

63. See MNA. PCC1/18/17. Lakeshore Development: Salima District Survey.

64. MNA. S1/385/23. Pearce to the Marques of Landsdowne, 7 July 1930; Public Records Office (PRO) CO 525/160. Secretary of State to Harold Kittermaster, 26 April 1936. For details see B. Pachai, *Land and Politics in Malawi, 1875-1975* (Limestone Press, Kingston, 1978); by the same author, 'Land Policies in Malawi: an examination of the colonial legacy', *Journal of African History*, 14, 4 (1973), pp. 681-698; and C. Ng'ong'ola, 'The Political Economy of Land in Nyasaland (Malawi)', *African Social Research*, University of Zambia (December, 1983), pp. 493-514.

Europeans with whom he could make alliances would enhance his political status and power in dealing with local contenders.

Around Fort Johnston, where the conflict between local chiefs and non-African commercial fishermen was intense, the chiefs blocked applications for further leasing of the lake front. Only after long appeals to the government did some few Europeans and Indians obtain leases for hotels and residential buildings.⁶⁵ Around Monkey Bay and Cape Maclear, some forty to forty-five miles north of Fort Johnston, chiefs agreed to the granting of rights of occupancy. Some 26 plots had been demarcated and surveyed by January 1945 and a public camping ground had been created.⁶⁶ Though local people's fishing rights were safeguarded, the conflict between fishing and alienation of the lake front was not resolved. What mattered to the local communities was not the number of camping sites or hotels but access to the lake as the alienation of the front blocked access to the fishing grounds. The fishermen needed access to the beaches and the lake front for drying and mending their nets and to build temporary shelters for seasonal accommodation and the storage of their equipment. The alienation of the lake front was particularly bad around Cape Maclear and near Chembe village where agricultural land was limited and African villages depended almost entirely on fishing. The creation of a camping site in the area required controlling the expansion of villages and their concentration in a small 'reserved land'.⁶⁷ The villagers, with support from the District Commissioner, successfully protested against the creation of the reserve. In the end, only an open camping site was created.

Given that the colonial administration was obviously aware of the conflict of interests between the fishing communities and those interested in developing water-based recreational facilities, why did it not legislate against the latter? There are three possible answers to this question. To begin with, there was no legislation to govern the alienation of the lake front. All the regulations the administration issued were a matter of trial and error which often benefited those who ignored or manipulated them to their advantage. Secondly, among those who alienated the lake front were well-established settlers and missionaries of British origin. These could not be treated in the same manner as the 'non-English speaking' Greeks who competed with the Africans in commercial fishing. They had a long history of enjoying water sports dating back to the 1890s.⁶⁸ Any official interference with this class of white settlers would have caused political

65. See MNA. S37/1/10/25. Cecil Baker, District Commissioner, Fort Johnston, to Senior Provincial Commissioner, 13 February 1942.

66. MNA. S37/1/10/24. Chief Secretary, Government General Notice, 25 January 1945. Interim Report of the Committee on the Development of the Lakeshore of Lake Nyasa, 1945.

67. MNA. S37/1/10/24. Interim Report, 1945.

68. See H. H. Johnston, *British Central Africa* (London, 1889), pp. 168–169.

clamour. Thirdly, and probably most important, the colonial administration simply under-estimated the long-term effects of the conflict between fishing and water-based recreation as well as the environmental implications of the latter. These were probably not all that serious at that time.

Fortunately, most of the plots allocated along the lake front were not immediately developed. The poor performance of the Nyasaland economy during the Great Depression and following the Second World War resulted in financial bankruptcy and subsequent departure of many white settlers.⁶⁹ Tobacco estates in the Shire Highlands were simply 'on a care and maintenance basis' or totally derelict.⁷⁰ Only those with enough capital managed to build cottages along the lake. These were often the Greek fishermen and settlers of British origin with access to external sources of capital. The alienation of the lake front thus did not generate as much controversy as did the competition between the various groups involved in commercial fishing. By the mid-1940s, it had become clear that the colonial administration had failed to control both the Greek and African entrepreneurs in the fishing industry. Attempts 'to organize' fishing and fish trading began in 1946 with the establishment of the Fisheries Department. A Fisheries Officer was appointed 'to review the local fishing industry and prepare it to take full advantage of the research and development work done by the [Fisheries Research Unit]'.⁷¹ The Officer would also 'make himself familiar with the fishing methods employed, and the social conditions and difficulties of the fishermen', in addition to conducting research and experiments on appropriate fishing gear. He was also charged with the responsibility of looking into the possibilities of the provision of loans to African fishermen, enforcing fisheries regulations, compiling statistics, and organizing the fish-trade.

The 1950s: ambivalent policies

Between 1946 and 1948, the Fisheries Department experimented with the use of ring and gill-nets made of cotton and flax.⁷² The gill-net fisheries received further stimulus from the Nyasaland Fisheries Company established in 1949 by South African interests, and the government bought shares in it using funds from the Colonial Development and Welfare Fund.

69. See R. H. Palmer, 'White Farmers in Nyasaland During and After the Depression' *African Affairs*, 84, 335 (1985), pp. 211–245.

70. MNA. NSD2/1/3. Chiradzulu District Annual Report, 1935; S37/1/10/43. K. C. Hall, Chief Secretary, to Managers of Estates, 1 August 1935; M. Kincaid-Smith to Chief Secretary, 2 August 1935; W. Tait-Bowie to Chief Secretary, 6 August 1935; J. Nicoll to Chief Secretary, 9 August 1935.

71. MNA. PCC/1/18/16. Chief Secretary to Lands Officer: Duties of the Fisheries Officer, 12 January 1946. See also A. J. P. Mzumara, 'The Fisheries Department of Malawi: organization, policy and management', *Journal of Social Science*, University of Malawi, 7 (1978/79), pp. 108–114.

72. Mzumara, 'The Fisheries Department of Malawi', p. 108.

The company sold gill nets to fishermen and competed with Indian merchants and two other commercial firms involved in the importation, manufacturing, and distribution of gill-nets. Some migrant labourers from the lakeshore districts had taken to cross-border trafficking of nets, especially from Tanganyika and Northern Rhodesia.

The Fisheries Department itself experimented with different types of fishing gear and boats. The Department's plank-boats were 'in big demand', orders 'far exceeded possible production'.⁷³ The fishing industry thus 'continued to show signs of expansion' and 'becoming more truly commercial'. A 'small but growing' number of Africans 'looked to fishing as their main livelihood'.⁷⁴ Some of them used powered boats with outboard engines. A 'new class of African commercial fishermen' and fish traders had emerged.⁷⁵ A network of fish-trading relations developed with agents established along the road from Fort Johnston to Zomba, Limbe, and Blantyre. These handled part of the lorry-loads while the owners proceeded with the remainder to the urban markets.⁷⁶

Another important contribution of the Fisheries Department to gill-net fishing came through the decisive reduction in the crocodile population of the principal fishing areas of the southern parts of the lake.⁷⁷ Crocodiles had a damaging effect on gill-net fishing, destroying the nets and eating 'large quantities' of fish already caught. In 1950, the Fisheries Department received about £1,400 from the Native Development and Welfare Fund for the destruction of crocodiles. A hunter was hired and by the end of the year he had shot not less than 400, while hundreds more were killed by poison. For weeks the lakeshore was littered with rotting and smelly crocodile carcasses.⁷⁸ The ecological implications of the poison used in this exercise were not assessed. Local villagers were also mobilized to hunt for crocodile nests and collect their eggs. In less than one month in 1950, 4,485 eggs were collected. By 1951, crocodile hunting had the characteristics of a profitable business, and hundreds of skins were sent to South Africa, Britain, and even the United States. Two licences were issued for commercial hunting of crocodiles in 1952. However, beyond reducing the crocodiles the administration did nothing else. It did not provide loans to

73. Colonial Office, *Nyasaland Protectorate Annual Report* (HMSO, London, 1953), p. 76.

74. Colonial Office, *Nyasaland Protectorate Annual Report*, 1954, pp. 6 and 83.

75. Colonial Office, *Nyasaland Protectorate Annual Report*, 1954 pp. 6 and 75–76; and 1955, pp. 78–79. The term 'commercial fishermen' does not make much sense. African fishermen and fish-traders were already commercial by this time, but colonial officials referred to them as 'subsistent' or 'part-time'.

76. MNA. COM-9/3/1. Evidence by Henry Masauko Chipembere to the Commission of Enquiry into Fish Marketing and Supplies, Fort Johnston, 8–9 June 1956.

77. MNA. PCC1/18/16. Correspondence between W. H. Jollyman, the Fisheries Officer, and the Chief Secretary.

78. For detailed accounts see the correspondence between W. H. Jollyman and the Fisheries Officer, and the latter with the Provincial Commissioner and the Chief Secretary in MNA. PCC1/18/16. The hunter, Jollyman, was a tobacco farmer and analytical chemist.

the emerging group of African entrepreneurs and did not interfere with the trading of fish. Only a temporary ban was imposed on the exportation of fish after the 1949 famine. This was done under pressure from nationalist politicians who accused the administration of allowing Greek fishermen to export fish while the Africans were facing food shortages. The politicians' hidden motive was to make sure that the Greeks did not take advantage of the situation to make large profits. Limited exportation was allowed from 1954 and the ban was completely lifted in 1957.

From the early 1950s, there was another shift in the administration's policy regarding the fishing industry. The intensification of gill-net fishing provided an opportunity to raise revenue from fishermen and fish traders for the Native Authority Administration. That way the weakening position of the chiefs would also be strengthened. New fishing regulations were proposed which introduced fishing licences for African commercial fishermen.⁷⁹ Chiefs were empowered to refuse permits to non-resident Africans so as to control the rate of fishing in their areas and to conserve the fish stocks in times of scarcity—as if the fish were stationary in the Native Authorities' respective areas.⁸⁰ However, government officials were divided on the desirability of these rules. The District Commissioner in Karonga at the northern end of the lake felt that it 'would be extremely short-sighted to abandon any attempt at control', but, 'in any case, there [was] plenty of unenforced and unenforceable legislation on the Statue Book already'. Unless the fishing regulations were enforced, which he doubted very much, it would be insufficient merely to warn the African commercial fishermen of the results of over-fishing.⁸¹ His opinion was shared by the Provincial Commissioner in the area who argued that 'if applied to the Northern Province [the rules] would present numerous practical difficulties'. He therefore recommended that 'they should not be applied to the Northern Province until such time as it is possible to ensure their enforcement'.⁸²

A major obstacle to the effective implementation of these rules arose from the mobility of fishermen and their seasonal fishing practices. As the Provincial Commissioner for the Central Province noted: 'Africans naturally [made] up their minds to fish or not to fish—at the start of the season [or] half way through the season'. That would logically lead to problems in determining the licensing period.⁸³ Since the licensing would

79. MNA. PCN 1/17/7. Fishing: General Policy, Rules etc, 1947–1951.

80. MNA. PCN 1/17/7. Fishing Rules and Licensing (Fisheries Commercial Fishing Rules, 1950).

81. MNA. PCN 1/17/4. District Commissioner, Karonga (North Nyasa District) to Acting Provincial Commissioner, 14 December 1951.

82. MNA. PCN 1/17/4. Acting Provincial Commissioner (Northern Province) to Chief Secretary, 25 August 1951.

83. MNA. PCC 1/15/8. Acting Provincial Commissioner to District Commissioners: Dowa, Nkhota-kota, and Dedza, 29 January 1952.

be done by the Native Authorities in their respective areas, there would be no uniformity in the fees and licensing system. The fishermen would avoid those areas in which the fees were high. The chiefs would also out-do each other by lowering their licensing fees in their respective areas in order to attract fishermen. When the metal licensing discs finally arrived from South Africa in 1953,⁸⁴ they were unevenly distributed in the southern and central portions of the lake only.

With the introduction of the new Native Authority Ordinance in 1955, chiefs were given powers to effect price controls on fish sold in their areas. The regulations became very unpopular with local fishermen and fish-traders to the extent that the chiefs themselves became reluctant to enforce them vigorously. In fact, in most areas the chiefs neither had the power nor the resources to effect the price controls. Fishermen and fish-traders were mobile and would easily avoid areas where the controls were in effect. As fishermen and fish-traders challenged the legality of the controls, cases of deliberate violations became very common, ending in minor fines.⁸⁵ The incidents attracted a great deal of official attention which resulted in the recommendation that the controls were 'illegal' and had to be abandoned. There was growing fear that the fishermen and fish-traders would simply stop fishing and African commerce would suffer as a result. This, in turn, would defeat the whole purpose and effort to create a new class of African commercial fishermen and fish traders as described above. It would also deprive the chiefs of a source of revenue and thus weaken their political and economic position even further.

Along with the price controls came the proposal on fishing co-operatives. Funds would be drawn from the Native Development and Welfare Fund of the Colonial Development Corporation (CDC) and advanced by government to the co-operatives 'for the purposes of purchasing good quality imported nets'. District Commissioners would provide 'personal assistance and guidance in developing a co-operative scheme for communal fishing and marketing'.⁸⁶ Two pilot co-operative societies were proposed, one on Likoma Island in Nkhata Bay district, and the other in Chief Mponda's area in Fort Johnston.⁸⁷ On Likoma Island the attempts 'were met with a response which was individually lukewarm' and

84. MNA. PCN 1/17/3. Acting Director, Game Fish, and Tsetse Control, 23 November 1953.

85. MNA. PCN 1/17/4. District Commissioner, Nkhata Bay, to Provincial Commissioner (North), 16 February 1957; Director, Game, Fish and Tsetse Control, to Provincial Commissioners, 29 July 1956.

86. MNA. NS1/10/1. Interim Report on the Fish and Fisheries of Lake Nyasa, 1945; COM-9/3/1. Commissioner for Co-operative Development to Attorney General, 4 October 1956.

87. MNA. PCN 1/17/8. Fishing Investigations and Proposal for Fishing Co-operatives—Likoma Island; *Annual Report of the Department of Game, Fish and Tsetse Control, 1958* (Government Printer, Zomba, 1959), pp. 5–6.

collectively 'extremely hostile'.⁸⁸ At Mponda's, after a very little consideration, the scheme was rejected by Mponda and his headmen on the grounds that: 'we have tried "companies" and we don't like them'.⁸⁹ The reasons for the 'hostility' were that Africans were quite aware of the risk capital required for the proposed scheme which the administration was unable to provide, and the majority of fishermen could not raise independently. During this period, the operation of other types of co-operatives in rice, coffee, dairy and ghee production and marketing was not impressive, and Africans were aware of that. Fish, being such a highly perishable commodity, and so susceptible to market gluts, was not ideal for the successful operation of a co-operative society.

The proposal received some support from members of the Malawian petit-bourgeoisie, predominantly retail traders and nationalist politicians who saw the fishing industry as 'one of their hopes for an economic future'.⁹⁰ Representatives of these were the African members of the Legislative Council from the lakeshore districts. They became very vocal in matters of commercial fishing, and protested against the involvement of non-Africans in it. Led by Wellington Kanyama Chiume and Henry Masauko Chipembere, both of them members of the Legislative Council and top officials of the Nyasaland African Congress, the nationalists saw no wisdom in what the colonial government was doing. 'That the fishing industry must be encouraged and widened is beyond dispute', wrote Chiume to the Commission on Fishing, 'but this must only be done with the view to increase and intensify African participation rather than to offer easy facilities to the people who could establish business elsewhere'.⁹¹ This statement was targeted at the Greek fishermen who the African fishing petit-bourgeoisie regarded as their main contenders. They opposed Greeks exporting fish to Southern Rhodesia for fear that they would be wiped out of the business. They argued that they could not obtain export licences because, unlike their Greek contenders, they did not have sufficient capital to sustain a fish exporting business.⁹² The nationalists went beyond voicing concerns about fishing and fish trading to criticizing the government's natural resources conservation ideology and policy as a whole, and especially soil conservation. In December 1956, Chipembere wrote to the Director of Agriculture:

88. Nyasaland Protectorate, *Annual Report of the Department of Game*, 1958, p. 5.

89. MNA. NS1/10/1. Interim Report on the Fish and Fisheries of Lake Nyasa: Memorandum on Co-operatives by the District Commissioner, Fort Johnston.

90. MNA. PCN 1/17/8. Acting Chief Secretary to the Chairman of Co-operatives, 18 July 1958.

91. MNA. COM-9/1/1. Wellington Kanyama Chiume, Member of Legislative Council, Nkhata Bay, to Secretary, Commission of Enquiry into the Fishing Industry. See also the evidence by Henry Masauko Chipembere, Member of Legislative Council, Fort Johnston, in the same file.

92. MNA. COM-9/1/1. Resolution passed at a Constituency Meeting at Malindi, Fort Johnston, 17 July 1956.

No human being possessing any traces of sanity can dispute the importance of soil conservation in themselves . . . we who are charged with the duty to speak for our people have time and again made earnest representations to the government that the introduction of advanced methods of agriculture and soil conservation need not cause human suffering . . . Mistakes such as these can only make the work of the Agriculture Department unpopular and thus delay the coming of the happy day when all Nyasaland will have accepted the teachings of science with their present merit as the only basis of agriculture.⁹³

As far as fishing and fish trading were concerned, Chipembere and Chiume also spoke for themselves and their immediate constituencies and families. Both of them had stakes in the fishing industry. They came from fishing villages and fishing families. Well-informed sources maintain that Chipembere had his own fishing unit and some members of his immediate family made their living from fishing and fish trading. The same applied to Chiume. When Chipembere fell out of favour with Dr Hastings Kamuzu Banda in 1964, and went to his home to organize a revolt against Banda's autocratic rule, his supporters and lieutenants were drawn from prominent fishermen, businessmen and fish traders in his Mangochi (formerly Fort Johnston or South Nyasa) district. When the revolt was ruthlessly suppressed, their fishing gear and craft were either destroyed or confiscated.⁹⁴ Chipembere and Chiume thus combined personal, family, and political interests in their voicing of concerns about the way the colonial administration handled the fishing industry.

Under pressure from the nationalist politicians the administration appointed a Commission of Enquiry into fishing and fish trading in 1956. Three important conclusions can be drawn from its voluminous evidence.⁹⁵ Firstly, 'small-scale' African commercial fishermen and fish-traders continued to resent both government intervention and the participation of non-Africans in the fishing industry. A Nyasaland migrant labourer writing from Transvaal, South Africa, even questioned the government's intention in setting up the Commission. 'I have heard this kind of thing before', wrote Koloneliyo Zekeyo Kamnkhwala, 'at first, that it was required that all gardens in the villages should be registered, that was bad! . . . and now, it is fish. What is wrong with the fish? . . . Do you want Europeans to divide up the lake among themselves? . . . You better listen to us now . . .'⁹⁶ Kamnkhwala had read about the Commission in *Msimbi*, a Nyasaland vernacular newspaper which some migrants in South

93. Henry Masauko Chipembere in MNA. 2.4.2F/137. Natural Resources Board Correspondence, 1951–1954, as cited by D. Njaidi, 'Towards an Exploration of Game Control and Land Conservation in Colonial Mangochi, 1891–1964', unpublished History Seminar paper, Chancellor College, University of Malawi (1994), p. 29.

94. I am grateful to the late Martin Kanyuka for providing me with this information.

95. See MNA. COM-9/1/1 to COM-9/4/2. Fish Commission, 1956.

96. MNA. COM-9/1/1. Koloneliyo Zekeyo Kamnkhwala, Transvaal, South Africa, to Commission of Enquiry into Fish Marketing and Supplies, 25 May 1956, translated.

Africa received through their Labour Representative in Johannesburg. His opinion was probably shared by many others who feared that the results of the Commission would be used to introduce legislation restricting African fishing activities and provide opportunities for white settler fishermen and fish traders.

Secondly, the number of Africans involved in commercial fishing and fish-trading had increased during the 1950s. Labour migrants in Southern Rhodesia and South Africa were writing to the home government for commercial fishing licences, partly in fear that they might lose out to the non-Africans, and partly also to find a niche to return to after working abroad. On the lake itself, some enterprising individuals operated dhows: between Makanjila on the east coast and Fort Johnston, Monkey Bay, Chipoka and Salima on the west coast; between Nkhota-kota, Mkumbaledza, and Chia, in the north and various lake stations in the south; and from the islands of Likoma and Chizumulu to mainland stations in Nkhata Bay, Nkhota-kota and Salima.⁹⁷ Formerly a status symbol for chiefs and wealthy individuals, by the late 1950s and right up to the late 1960s in the case of the islands,⁹⁸ dhows had become an important fish-trading vessel for traders from Makanjila, parts of Nkhota-kota and Likoma and Chizumulu.

Lastly, the internal demand for fish was a large one, and it often exceeded the supply—especially on the tea plantations and the urban markets of Blantyre, Limbe, Zomba and Lilongwe. The fish trading business thus had considerable potential. Unfortunately, the Fisheries Department did very little in the collection of statistics. Only the Yiannakis Brothers periodically collected statistics on their daily catches in the late 1950s. These, however, are not representative of the expansion of the fishing industry at this time. Some fragmented statistics for the ring net fishery were collected from the 1950s and are cited below. These also are not representative of the size of the lake's fisheries industry. The sets of statistics that would accurately reflect its size and expansion at this time would be those relating to the catches of African fishermen and the volume of fish handled by African fish traders. Unfortunately, these are non-existent.

Two important developments occurred between 1958 and 1964 from which 'small-scale' African fishermen and fish-traders benefited. Firstly two non-African firms began to purchase fish caught by Africans for export to Southern Rhodesia. This was partly a response to the growing competition among the non-African fishing firms themselves, and partly also

97. See MNA. PCN1/17/5. Chief Secretary to Chairman of Co-operative Societies, 18 July 1958.

98. The use of dhows in fish trading is also mentioned in Malawi Government/H. L. F. Renson, *Fish Marketing in Malawi* (Ministry of Agriculture, Zomba, 1969), pp. 12–13.

because of the expansion in African commercial fishing. Four non-African commercial firms were in operation by 1959. Their overall fishing rate had risen from 9,325 ring-net hauls in 1958 to 12,412 hauls in 1959, but their individual production was not enough for the expanding export trade. Thus they adopted 'a policy of large scale purchasing of fish caught by Africans', giving the 'small-scale' fishermen an option of selling their catch to local fish-traders or to the non-African exporters. Not less than 450 tons of fish were bought by the exporters from African fishermen in 1960 alone.⁹⁹ Secondly, the government began providing some modest loans for fishing 'and related purposes' between 1958 and 1962. The total amounts had risen from £2,400 in 1959 to £3,500 in 1960.¹⁰⁰ The numbers of the recipient, their location and size of operation were not stated. The major beneficiaries were likely to be the 'small-scale' fishermen. Given that this was at the peak of the nationalist movement, the aim was to boost the 'new' class of entrepreneurs to act as a buffer between the colonial administration and the radical nationalist politicians. This class would also effectively compete with the non-African entrepreneurs and thus reduce their growing economic power in the fishing industry.

These developments resulted in remarkable differentiation among fish-traders. By independence in 1964, three main categories could be identified.¹⁰¹ The first was that of 'small-scale' traders dealing in amounts of fish valued between £2 and £5. They bought their supplies from commercial fishermen, 'middlemen' or 'middlewomen' traders, or went to the lake regularly. They processed their supplies on the spot and carried them to the markets by lorry or bus. Their cash return varied between £5 and £10 per load. This group had 'a small turnover', though some were more active than others. The more active ones made more than two trips to the lake in a month. The second group comprised 'large-scale' traders handling tons of fish using lorries. They employed labourers for processing the fish at the lake and had agents along the road and in the urban markets. If fresh, the fish was carried in insulated boxes mixed with ice bought from non-African firms. This group often acted as 'middlemen' and 'middlewomen', leaving the retail markets to the 'bicycle-boys' and other 'smaller' traders. The third category was that of seasonal traders engaged in fish-trading during the dry season when they had little agricultural work to do, though they were irregular and few in numbers.

99. Colonial Office, *Nyasaland Protectorate Annual Report*, 1960, p. 85.

100. MNA. PCN1/17/4. Director, Game, Fisheries, and Tsetse Control, to Provincial Commissioners, 30 February 1959; Colonial Office, *Nyasaland Protectorate Annual Report*, 1959, p. 81; and 1960, p. 85.

101. Malawi Government/Renson, *Fish Marketing*, p. 5.

Conclusion

This account suggests that no single group won the contest for the fishing rights and control over the environmental resources of Lake Malawi. However, there were certain groups of entrepreneurs who benefited more than others. They included the Greek fishermen, the 'small-scale' African fishermen, the 'middlemen' or 'middlewomen' fish traders, and the fish processors stationed at the lake. The greatest losers were the traditional leaders: chiefs and village headmen. They could not use their political power to entirely block the success of the other groups. The practices of the colonial administration were too ambivalent to offer them sustained support. Ambivalence has also been the major characteristic of the present government in its handling of the fishing industry. Until very recently, the Lake Malawi fishing industry developed without direct government intervention. This was partly for fear of violating the fishing communities' right to subsist, and partly also because the government did not have the resources and personnel to effectively intervene. The government has also failed to control the leasing of the lake front for the development of tourist and recreational facilities. The custodianship of the lake front and all the lake's environmental resources still remains unclear. Both the government and the chiefs have the power to allocate plots along the lake front, and this leads to confusion. As the process continues, the fishing communities are systematically being pushed out of their traditional fishing grounds by land developers.¹⁰² There is now a major conflict of interests between the fishing communities and those interested in developing tourist and recreational facilities. The land use pattern arising from this conflict will create serious ecological problems along the lake for generations to come.

102. See Derman and Ferguson, 'Human Rights, Development and Environment', pp. 125–142; Ferguson, Derman and Mkandawire, 'The New Development Rhetoric', pp. 1–18.